

ROADRESQ

Terms of Service / Privacy Policy Requirements

Product Requirements for Legal Documentation

Document Type: Business / Product / Legal-Readiness Requirement

Version: 1.0 **Status:** Product Requirements Baseline

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Important: This document is not legal advice and is not a substitute for review by qualified legal counsel. It defines what RoadResQ's legal documents should address from a product, operational, privacy, safety, and engineering perspective.

1. Document Control

Field	Requirement
Document	RoadResQ Terms of Service / Privacy Policy Requirements
Version	1.0
Owner	RoadResQ Product + Engineering + Operations
Legal Reviewer	Qualified legal counsel to be assigned
Applies To	Customer app/web, provider/garage interfaces, admin systems, APIs, support operations, and integrated services
Primary Purpose	Define the product requirements that final Terms of Service, Privacy Policy, consent notices, and related legal documents must cover
Status	Baseline for legal drafting and product implementation

Review rule: Legal text must be maintained separately from this product requirements document. Product, engineering, operations, security, finance, and legal teams should reconcile the final documents before launch or material feature changes.

2. Scope and Legal-Readiness Principle

RoadResQ is a digital roadside assistance and automotive service platform connecting vehicle owners with service providers such as mechanics, garages, towing operators, battery/tyre providers, fuel assistance providers, and other roadside-service professionals.

The legal documentation should clearly explain what RoadResQ is, what it is not, how the marketplace relationship works, what users agree to, what data is processed, what responsibilities belong to customers and providers, and how disputes, payments, cancellations, safety incidents, and account actions are handled.

Core principle: Legal documents must match actual product behavior. Do not promise a privacy control, refund right, service guarantee, verification standard, response time, security measure, or data deletion behavior that the software and operations cannot actually provide.

3. Document Set Required

Document	Purpose	Required Coverage
Terms of Service	Core contractual rules for use of RoadResQ	Eligibility, accounts, services, bookings, payments, cancellations, disputes, prohibited conduct, liability, termination, governing terms
Privacy Policy	Explain collection and processing of personal data	Data categories, purposes, sharing, retention, rights, security, cookies/analytics, location, vendors, contact mechanisms
Provider Terms / Provider Agreement	Rules for mechanics, garages and service providers	Eligibility, verification, service standards, pricing, job conduct, customer interaction, documents, payouts, suspension, indemnity/claims
Cookie / Tracking Notice	Explain browser/device tracking where applicable	Cookies, SDKs, analytics, advertising/measurement, choices and controls
Consent / Permission Notices	Just-in-time transparency	Location, notifications, camera/media, contacts if ever requested, communications and marketing
Refund / Cancellation Policy	Operationalize commercial rules	Customer cancellation, provider cancellation, failed service, refunds, fees, payment status
Safety / Emergency Disclaimer	Set safety expectations	RoadResQ is not a replacement for police, ambulance or fire services; emergency limitations and user responsibilities

Document	Purpose	Required Coverage
Claims / Damage Policy	Handle vehicle/service damage complaints	Evidence, reporting windows, investigation, provider/customer cooperation, outcomes

4. Terms of Service — Required Sections

4.1 Acceptance and Agreement

- State when the Terms become binding and how acceptance occurs during registration, booking, or use.
- Explain that continued use after valid updates may constitute acceptance where legally permissible.
- Identify the contracting entity and relevant contact details.
- Explain which additional policies are incorporated by reference.
- Maintain version history and effective dates for published Terms.

4.2 Eligibility and Account Rules

- Define minimum eligibility requirements and any age or legal-capacity requirements after legal review.
- Require accurate registration information and prohibit impersonation or fraudulent accounts.
- Define responsibility for account credentials, OTPs, devices, and unauthorized use.
- Explain account suspension, restriction, closure, and appeal/review processes.
- Specify requirements for multiple accounts, business accounts, and delegated access if supported.

4.3 RoadResQ Marketplace Role

- Clearly define whether RoadResQ acts as a marketplace, technology intermediary, booking platform, service facilitator, or another legally reviewed role.
- Explain the relationship between customer and service provider.
- Avoid implying that every service provider is an employee, agent, partner, or guaranteed representative unless legally intended.
- Describe what provider verification means and what it does not guarantee.
- Define RoadResQ's role in matching, dispatch, communication, payments, support, and dispute handling.

4.4 Service Requests and Bookings

- Define request creation, matching, provider acceptance, booking confirmation, arrival, inspection, estimate, repair/service, completion, invoice, payment, and review.
- Explain that provider availability and acceptance are not guaranteed until confirmed.
- Address incorrect vehicle information, inaccurate location, inaccessible vehicle, unsafe conditions, or unavailable services.
- State rules for scheduled bookings and emergency/instant requests.
- Define when a booking becomes binding and when service delivery is considered started/completed.

4.5 Pricing, Estimates, Additional Work and Payment

- Explain displayed prices, estimates, service fees, platform fees, taxes, surcharges, distance-related charges, and other applicable amounts as legally approved.
- Explain that inspection findings may change an estimate where the product permits this.
- Require customer approval for additional chargeable work unless an emergency exception is legally and operationally defined.

- Define invoice issuance, payment authorization, failed/pending payments, refunds, adjustments, and reconciliation.
- State that RoadResQ may use third-party payment providers and that their applicable terms may also apply.

4.6 Cancellation and No-Show

- Define customer cancellation before and after provider acceptance/arrival/service start.
- Define provider cancellation and reassignment behavior.
- Define no-show, unreachable customer, inaccessible vehicle, and unsafe-site cases.
- Explain any cancellation fees or refund consequences in a transparent way.
- Ensure commercial rules match the Payment & Settlement Specification and Support & Dispute SOP.

4.7 User Responsibilities and Prohibited Conduct

- No fraudulent requests, fake breakdowns, harassment, threats, abuse, theft, manipulation of ratings, payment fraud, document fraud, or unauthorized system access.
- No misuse of provider/customer contact information or location data.
- No attempts to bypass RoadResQ fees or platform controls where prohibited.
- No uploading unlawful, malicious, deceptive, or irrelevant content.
- No use of RoadResQ for dangerous or unlawful activities.

4.8 Safety and Emergency Limitations

- Prominently state that RoadResQ is not a replacement for police, ambulance, fire, or other public emergency services.
- Direct users to appropriate emergency services when there is immediate danger, injury, fire, crime, or another public emergency.
- Explain that roadside service response depends on provider availability, traffic, weather, network conditions, location accuracy, and other external factors.
- Define user responsibilities for waiting in a safe location and following applicable road-safety requirements where appropriate.

4.9 Provider Verification and Service Quality

- Explain the meaning and limitations of 'verified' status.
- State that verification may include identity, business, address, documents, capabilities, and operational checks.
- Define provider obligations around accurate information, professional conduct, pricing transparency, customer safety, and completion records.
- Reserve the right to suspend or remove providers for safety, fraud, quality, compliance, or policy violations.

4.10 Intellectual Property and User Content

- Define ownership/licensing of RoadResQ software, branding, content, documentation, and interface.
- Define permitted use and prohibited copying, scraping, reverse engineering, or misuse subject to applicable law.
- Define user-provided photos, videos, voice notes, reviews, messages, and other content and the license required to operate the service.
- Explain moderation/removal rights for unlawful or policy-violating content.

4.11 Disclaimers, Liability and Indemnity

- Legal counsel must define warranties, disclaimers, liability limits, exclusions, indemnification, and legally required consumer protections.
- Avoid broad language that attempts to waive rights that cannot legally be waived.

- Address third-party providers, towing, repair quality, delays, traffic, weather, GPS inaccuracies, network outages, payment providers, and other dependencies.
- Align legal language with actual operational escalation, claims, refunds, and safety procedures.

4.12 Termination and Changes

- Define termination by customer and RoadResQ.
- Explain effects of termination on active bookings, pending payments, refunds, disputes, records, and outstanding obligations.
- Define policy-update process, notice expectations, effective dates, and handling of material changes.
- Preserve versions needed to establish which Terms applied to historical transactions.

4.13 Governing Law, Disputes and Notices

- Legal counsel must determine governing law, jurisdiction, arbitration/mediation provisions where applicable, consumer dispute mechanisms, and notice requirements.
- Provide official support/legal contact channels.
- Define how legal notices and policy communications are delivered.

5. Privacy Policy — Required Sections

5.1 What Personal Data RoadResQ Processes

Data Category	Examples	Policy Requirement
Identity / Account	Name, phone, email, account identifiers	Explain collection, account operation, authentication, support and security purposes
Vehicle	Make/model, registration details, vehicle metadata	Explain service matching, booking, service history and fraud/safety purposes
Location	Pickup location, destination/service location, provider location	Explain when collected, why, visibility, retention, and permission controls
Service Evidence	Photos, videos, voice notes, inspection records	Explain user uploads, storage, sharing with relevant parties, and retention
Communications	Messages, support conversations, call-related metadata	Explain operational communications, safety, support, and lawful monitoring where applicable
Payment / Financial	Transaction IDs, invoice amounts, payout records	Explain what RoadResQ stores versus what payment providers process
Provider Verification	Identity, business, address and qualification documents	Explain restricted access, verification purpose, retention and deletion controls
Technical	IP address, device/browser data, logs, identifiers	Explain security, analytics, diagnostics and service operation
Reviews / Content	Ratings, reviews, comments	Explain public/display behavior and moderation
Support / Disputes	Tickets, evidence, case notes	Explain investigation, safety, fraud and resolution purposes

5.2 Purposes of Processing

- Create and manage accounts.
- Authenticate users and prevent unauthorized access.
- Match customers with appropriate providers.
- Provide booking, navigation, tracking, service, invoice and payment functionality.

- Communicate operational updates, alerts, support messages and service notifications.
- Verify providers and maintain marketplace trust and safety.
- Prevent fraud, abuse, security incidents and misuse.
- Investigate complaints, disputes, claims and payment issues.
- Improve reliability, performance, accessibility, product quality and user experience.
- Meet legal, regulatory, accounting, tax, audit, safety, and lawful-request obligations where applicable.

5.3 Location Privacy Requirements

- Explain foreground/background location behavior separately if both are supported.
- Explain when customer location is collected and who can see it.
- Explain provider location sharing during active jobs and the boundaries of that visibility.
- Do not imply continuous tracking if the product only collects location during defined service states.
- Provide permission-denied behavior and manual-location alternatives where supported.
- Define location retention, deletion, aggregation/anonymization, and access controls after a job ends.

5.4 Sharing and Disclosure

- Explain sharing between customers and assigned providers where necessary to perform the service.
- Explain sharing with payment processors, mapping providers, SMS/OTP providers, push notification providers, cloud/storage vendors, analytics tools, customer support systems, and other processors actually used.
- Explain disclosures required by law, court orders, regulators, or protection of rights and safety.
- Explain corporate transactions such as merger, acquisition, financing, or asset transfer where legally appropriate.
- Do not claim 'we never share data' if service delivery requires controlled sharing.

5.5 Cookies, SDKs, Analytics and Tracking

- Inventory cookies, mobile SDKs, analytics, crash reporting, attribution, performance monitoring, and advertising/marketing technologies actually deployed.
- Explain essential versus optional tracking where relevant.
- Provide legally required controls or consent mechanisms for applicable jurisdictions.
- Ensure product implementation matches the disclosures.

5.6 Data Retention

- Publish or describe retention rules for account data, bookings, invoices, payment records, location data, provider documents, support cases, logs, and uploaded evidence as legally reviewed.
- Define criteria for retention rather than using indefinite storage by default.
- Explain legal, fraud, dispute, accounting, security, or backup exceptions where applicable.
- Ensure deletion requests are reconciled with backups and mandatory records.

5.7 Security

- Describe security measures at an appropriate level without exposing exploitable implementation details.
- Cover authentication, authorization, encryption in transit, access controls, audit logging, secure storage, monitoring, incident response, and vendor security.
- Do not guarantee absolute security or '100% secure' storage.

- Maintain internal controls in the Security Architecture and Threat Model even if the public Privacy Policy uses higher-level language.

5.8 User Rights and Choices

- Identify privacy rights applicable to relevant users and jurisdictions after legal review.
- Provide processes for access, correction, deletion, objection, restriction, portability, consent withdrawal, and other applicable rights.
- Explain identity verification required for rights requests.
- Define appeal/escalation mechanisms where legally required.
- Provide an official privacy contact channel and response expectations as legally reviewed.

5.9 Children's Privacy

- Define whether RoadResQ is intended for adults or whether minors may use the service.
- Set age/consent rules after legal review.
- Explain handling of information collected from children contrary to policy or applicable law.

5.10 International Processing and Data Residency

- Identify relevant hosting, support, payment, analytics, communications, and cloud providers.
- Explain cross-border processing where applicable.
- Use legally appropriate transfer mechanisms and disclosures for jurisdictions involved.
- Do not state a country-specific storage promise unless infrastructure actually enforces it.

6. Just-in-Time Privacy & Consent Requirements

Feature / Moment	User-Facing Requirement
Location permission	Explain why location is needed, when it is used, and what happens if permission is denied.
Provider live tracking	Tell provider that location may be shared with the customer during an active job, with visibility boundaries.
Camera / media upload	Explain why photos/videos are requested and who may access them for service/support purposes.
Voice note	Explain that the audio message is uploaded/stored as service content and may be accessible to relevant support/provider users.
Push notifications	Explain that operational alerts may be sent and how notification settings can be controlled.
Marketing communications	Separate promotional consent/controls from essential service communications where required.
Payment	Explain the payment processor interaction and the information needed to complete payment.
Analytics	Provide appropriate notice/controls where required by applicable law.
Provider document upload	Explain restricted processing for verification and compliance.

7. Special Product Clauses to Reconcile with RoadResQ Operations

- **Matching:** No provider match may be guaranteed unless the product explicitly offers such a guarantee.
- **ETA:** ETAs are estimates affected by traffic, provider location, network and external conditions.
- **Provider verification:** Verification must not be represented as an unconditional guarantee of service quality or safety.

- **Vehicle service:** RoadResQ should distinguish platform facilitation from the actual repair/service performed by a provider.
- **Estimates:** Customer approval rules must match the actual estimate workflow.
- **Payments:** Public legal text must match payment gateway, ledger, refund, payout and reconciliation behavior.
- **Reviews:** Review publication, moderation, fraud controls and removal rules must match the product.
- **Location:** Public documents must match actual GPS collection and retention behavior.
- **Support:** Legal documents should not promise support response times that operations cannot meet.
- **Emergency use:** Safety disclaimers and emergency-service direction must be prominent and consistent across UX and Terms.

8. Privacy-by-Design Engineering Requirements

- Every personal-data field should have a documented purpose and owner.
- Implement least-privilege access and object-level authorization.
- Restrict provider verification documents to authorized personnel and workflows.
- Do not expose customer contact or exact location beyond what the service requires.
- Use short-lived location visibility where continuous access is unnecessary.
- Log sensitive administrative access without storing unnecessary personal content in logs.
- Use data minimization for analytics and observability.
- Separate production customer data from development/test environments.
- Use synthetic or anonymized test data where possible.
- Build deletion/export/correction capabilities into data architecture rather than relying only on manual database operations.
- Version privacy-sensitive schemas and maintain a data inventory as features change.

9. Legal-to-Product Traceability Matrix

Legal Topic	Product / Engineering Evidence	Owner
Account terms	Auth, OTP, RBAC, account lifecycle	Product + Engineering + Legal
Service relationship	Provider profiles, booking model, provider terms	Product + Operations + Legal
Pricing	Estimate, invoice, payment and settlement flows	Finance + Product + Legal
Cancellation	Cancellation state machine + support SOP	Operations + Product + Legal
Location privacy	GPS permissions, location APIs, WebSocket visibility, retention	Engineering + Privacy + Legal
Provider verification	Verification workflow, document storage, audit logs	Operations + Security + Legal
Refunds	Payment/refund/reconciliation implementation	Finance + Engineering + Legal
Claims	Evidence collection, support cases, dispute workflow	Operations + Legal
Security	Security architecture, controls, incident response	Security + Engineering + Legal
Data retention	DB/object storage lifecycle and deletion jobs	Engineering + Privacy + Legal
User rights	Access/export/delete/correction workflows	Engineering + Privacy + Legal
Third-party vendors	Vendor/processor inventory and contracts	Procurement + Security + Legal

10. Legal Review Checklist Before Launch

- Contracting entity and business model have been legally reviewed.
- Customer Terms have been drafted and approved for the launch jurisdictions.
- Provider Terms/Agreement has been drafted and approved.
- Privacy Policy reflects actual data flows and vendors.
- Cookie/tracking disclosures match the web/mobile implementation.
- Location permissions and just-in-time notices are implemented.
- Payment, cancellation and refund rules are consistent across Terms, UI, support SOP and backend behavior.
- Emergency and safety limitations are visible at appropriate points in the customer journey.
- Provider verification language does not create unintended guarantees.
- Claims and damage-handling process is documented and legally reviewed.
- Intellectual property, user content, reviews and platform-license clauses are reviewed.
- Liability, indemnity, warranties, disclaimers and consumer-rights language are reviewed.
- Governing law, jurisdiction and dispute-resolution language is approved.
- Privacy rights, complaint channels and contact details are correct.
- Retention and deletion statements are technically implementable.
- Third-party processors/vendors are inventoried and legally covered.
- Historical Terms/Privacy versions can be retained and associated with relevant transactions.
- Legal documents are linked from the app/web at the appropriate acceptance and information points.

11. Change Management Requirements

- Trigger legal/privacy review when a new personal-data category is introduced.
- Trigger review when a new third-party vendor or processor is integrated.
- Trigger review when payment, pricing, refund, cancellation, provider verification, tracking, or claims behavior changes materially.
- Trigger review when the product expands to a new jurisdiction or customer/provider category.
- Maintain document version, effective date, change summary, approval record, and implementation date.
- For material changes, implement an appropriate re-consent or re-acceptance flow where legally required.
- Keep engineering configuration, privacy inventory, policy text, and operational SOPs synchronized.

12. Recommended Legal / Product Ownership Model

Area	Primary Owner	Supporting Teams
Customer Terms	Legal	Product, Operations, Finance, Engineering
Privacy Policy	Privacy / Legal	Security, Engineering, Product, Analytics
Provider Terms	Legal + Operations	Product, Trust & Safety, Finance
Payment / Refund Policy	Finance + Legal	Product, Support, Engineering
Safety / Emergency	Operations + Legal	Product, Support, Security

Area	Primary Owner	Supporting Teams
Claims / Damage	Operations + Legal	Support, Insurance/claims partner if applicable
Cookie / Tracking	Privacy / Legal	Web Engineering, Analytics, Marketing
Vendor Processing Terms	Legal / Procurement	Security, Engineering, Finance

13. Minimum Acceptance Criteria

- Every material RoadResQ data flow is represented in the Privacy Policy or a legally appropriate notice.
- Every material customer/provider commercial rule is represented in the applicable Terms or policy.
- Public policy language is consistent with actual application behavior.
- Sensitive data has defined access, purpose, retention, and deletion rules.
- Location sharing is transparent and technically constrained.
- Payment, refund, cancellation and dispute rules are consistent across legal, product, backend and operations documents.
- Provider verification claims are accurate and appropriately qualified.
- Users can find current legal documents easily before and after account creation.
- Policy versions and acceptance records are auditable where required.
- Qualified legal counsel has reviewed and approved the final jurisdiction-specific documents before production launch.

14. Relationship to Existing RoadResQ Documentation

This requirements document should be read alongside the RoadResQ Product Requirements, SRS, System Architecture, API Specification, ER/Data Dictionary, Security Architecture & Threat Model, Privacy/Data Governance Document, Payment & Settlement Specification, Customer Support & Dispute SOP, Provider Operations & Verification SOP, UX State & Edge-Case Document, Accessibility Specification, Deployment/DevOps Plan, Production Operations Runbook, Monitoring/Observability Plan, and Backup/Disaster Recovery Plan.

The legal drafting process should use these technical and operational documents as evidence of actual system behavior. Where legal requirements conflict with an implementation assumption, legal review and product/security decisions must resolve the conflict before launch.

15. Final Product Standard

RoadResQ should treat legal documentation as a living product requirement rather than a static launch artifact. The final Terms of Service and Privacy Policy must be understandable, discoverable, jurisdiction-appropriate, internally consistent, and technically enforceable. Product teams should be able to trace important public commitments back to concrete UI, API, database, security, payment, support, and operational controls.

Final disclaimer: This document provides product and engineering requirements for legal drafting. It is not legal advice. A qualified lawyer should determine the final wording, legal basis, rights, obligations, jurisdiction-specific disclosures, enforceability, and regulatory requirements applicable to RoadResQ.